

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B19: post-dissolution release route marker B19.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Mandate Release Order After Dissolution of Limited Stay

Entered August 11, 2026

The mandate is released for issuance today. Officer Nolan Rusk obtained a limited stay on July 20 while he completed review of a possible certiorari petition. On August 10, he timely notified the Court that he had abandoned the planned petition, had not sought an extension, and requested dissolution. The panel dissolved the stay effective that day and specifically directed next-day issuance.

No event under Federal Rule of Appellate Procedure 41(d)(2) continues the stay. There is no filed certiorari petition and no granted extension of the petition period. The Court is not acting upon a Supreme Court denial; it is implementing its own dissolution order after voluntary abandonment.

The Clerk has confirmed that the June 30 opinion and judgment remain unchanged. The mandate will make effective the disposition dismissing Rusk's factual appellate target and affirming the legal denial of qualified immunity on Ellison's assumed facts. Historical questions hidden by the recordings remain unresolved for any necessary district proceedings.

Release on August 11 provides the exact transition ordered by the panel. The mandate did not issue automatically at midnight when the stay ended, and it did not remain withheld for a default seven-day interval. This administrative order records the authorized issuance event and directs electronic transmission to the district court.

Issuance Checks

The docket contains the July 20 grant, Rusk's August 10 abandonment notice, the panel's same-day dissolution, and today's release direction. No later filing conflicts with those entries. Mara Ellison received service of the notice and order, and neither party has identified a clerical error in the planned issuance date.

The certified mandate shall consist of the judgment, the published opinion, and the direction concerning appellate costs. The district court may resume its authority when the Clerk issues those materials. A preliminary notification or counsel's receipt of this release order alone does not accomplish remand.

Native video, synchronization files, and physical exhibits remain where the district record places them. Appellate transmission need not duplicate large evidence objects. Preservation requirements continue, and the opinion's prohibition on appellate factfinding remains the guide for understanding the returned case.

No bond accounting is necessary because the limited stay was granted without security. The circuit clerk may process costs separately and close the docket once mandate service is complete. Any later extraordinary request must identify its own jurisdictional basis and does not suspend today's direction merely by being contemplated.

At the direction of Chief Judge Alder and Judges Reed and March, the Clerk shall issue the mandate on August 11, 2026 and record the exact time of effectiveness.